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## Appeal Decision

Site visit made on 16 July 2026

**by L Reid BSc (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 4<sup>th</sup> September 2026

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### Appeal Ref: 6008264

#### Land to the west of The Cottage, Snakes Lane, Ugley, Essex CM22 6HW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
  - The appeal is made by Dr Edward Perkins against the decision of Uttlesford District Council.
  - The application Ref is UTT/25/3066/OP.
  - The development proposed is for up to five new dwellings.
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### Decision

1. The appeal is allowed and outline planning permission is granted for up to five new dwellings at Land to the west of The Cottage, Snakes Lane, Ugley, Essex CM22 6HW in accordance with the terms of the application, Ref UTT/25/3066/OP, subject to the conditions in the attached schedule.

### Preliminary Matters

2. The application is in outline with all matters other than access reserved for future consideration. I have therefore dealt with the appeal on this basis, treating the proposed site plan, floor plans and elevations as purely indicative of how development could be accommodated on the site. The access is proposed from Snakes Lane.
3. Appeal decisions must be made on the basis of the currently-adopted development plan. Since the application was determined, the Uttlesford Local Plan 2021 – 2041 March 2026 (the Local Plan) has been adopted and supersedes the Uttlesford Local Plan January 2005 (the old Local Plan). The Council has provided the relevant policies, and both main parties have had the opportunity to comment on the implications for this appeal. I am therefore satisfied that my consideration of the appeal against the policies in the new Local Plan has prejudiced no party.
4. Since the appeal was made, the Government published a revised National Planning Policy Framework (the Framework) and the 2024 and 2025 Housing Delivery Test results. Both main parties have had the opportunity to make representations, and I have taken the comments received into account.
5. The appeal site has been subject to several previous planning applications and appeals. Most recently, permission in principle (PiP) for three dwellings was allowed at appeal in March 2025 (the March 2025 appeal)<sup>1</sup>, followed by the technical details consent (TDC) granted by the Council in September 2025<sup>2</sup>. As

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<sup>1</sup> Appeal Ref: APP/C1570/W/24/3350263

<sup>2</sup> UTT/25/2125/TDC

both stages of the consent process have been approved, this is an extant planning permission.

## **Main Issues**

6. The main issues are:

- Whether the appeal site is a suitable location for housing having regard to access to services and facilities and the spatial strategy; and,
- The effect of the proposal on the character and appearance of the area.

## **Reasons**

### *Location*

7. The appeal site is outside of a defined settlement boundary and is therefore within the open countryside for planning policy purposes. The proposal would not fall within any of the exceptions to new dwellings in the open countryside set out in Development Policy 1 of the Local Plan. This policy is consistent with Policy HO11 of the Framework and is therefore given full weight.
8. Core Policy 3 of the Local Plan sets out the spatial strategy defining the settlement hierarchy. Development in the open countryside will not be permitted unless specifically supported by other relevant policies as set out in the Development Plan or national policy. I have not been directed to any other policies in the Local Plan which specifically support development of this type in this location.
9. In terms of national policy, paragraph 1.e of Policy S5 of the Framework allows for the limited infilling within groups of houses. Whilst the appellant asserts that the proposal seeks to insert two additional dwellings within the layout of the approved TDC scheme, these dwellings are yet to be built. I must assess the proposal having regard to the appeal site's existing physical characteristics and its current relationship with surrounding development.
10. The appeal site comprises part of an open field. It adjoins the curtilage of The Cottage along one side but is surrounded by open countryside on the other sides. The proposal would therefore be next to built development on only one side. It would extend housing beyond the existing group, rather than being within it. Having regard to the physical context of the site, the proposal cannot reasonably be described as infilling within a group of houses. It would therefore not meet paragraph 1.e of Policy S5. The appellant has also referred to Policy HO8 of the Framework, but this is a plan-making policy.
11. Having regard to the case law referred to by the appellant, the development allowed at the appeal site in the March 2025 appeal decision was assessed against the policies contained within the old Local Plan, which the current Local Plan has now replaced. The Council has confirmed that the current Local Plan introduces a different policy context, with a higher standard for sustainability, prioritising sustainable transport modes, and an up-to-date spatial strategy and hierarchy. This is reflected in the spatial strategy policies set out above, and in particular Core Policy 26 which states that sustainable modes of transport should be prioritised in new developments to promote accessibility.

12. Whilst the March 2025 appeal decision is a material consideration, the adoption of the current Local Plan represents a material change in circumstances, reducing the weight that can be afforded to this previous decision. Notwithstanding this, the Inspector in that decision did state that when judged solely against the relevant policy, the appeal site could not be said to be ideally placed to encourage sustainable means of transport and identified conflict with this policy. They took an on balance view, in finding that the appeal site was in an acceptable location. In reaching this conclusion, the Inspector exercised their planning judgement, a matter which is for the decision maker.
13. Ugley Green has limited services and facilities. Future occupants of the proposal would therefore need to travel elsewhere to meet their day-to-day needs. Nearby larger settlements of Elsenham and Stansted Mountfitchet offer a range of services and facilities, each served by a train service connecting to other cities and transport hubs.
14. Whilst the appeal site has access to some sustainable transport modes, these are subject to limitations that reduce their attractiveness and practicality for many day-to-day journeys. A short cycle ride can reach Elsenham and would provide an alternative means of travel to car. However, cycling would be unlikely to be a suitable option for all users and may be less appealing in adverse weather conditions or for trips involving children, shopping or mobility constraints. Furthermore, the bus stops on Alsa Street and at Ugley Village Hall can be accessed by bicycle, but there is no evidence before me that secure bicycle storage is available at these locations. As such, combining cycling with onward bus travel would be dependent on individuals having access to folding bicycles, which cannot be secured by the proposal and would not represent a realistic option for many users.
15. I also agree with the Inspector's findings in the March 2025 appeal decision that walking to the bus stops served by the 301 bus service would not be an attractive option for all users, notwithstanding that the service is relatively frequent and provides connections to larger settlements. The bus stops closest to the site are served by the 441 bus service. However, this operates only twice a day during term-time weekdays and would not assist with evening, weekend or school holiday journeys. Whilst the service may assist with some school-related journeys, its limited frequency and restricted operating times mean that future occupiers could not reasonably rely upon it to access the services and facilities required to meet their day-to-day needs.
16. Consequently, whilst opportunities for cycling and public transport use are available, they cannot be regarded as being prioritised in a manner that would make them the preferred choice for everyday journeys. Future occupants would therefore be reliant on the car for a significant proportion of their travel needs, which would not prioritise active travel over the use of the car, as required by Core Policy 27 of the Local Plan.
17. I have had regard to the Inspector's findings in the Maughans appeal decision (APP/C1570/W/19/3230897) and the Fieldgate Farmhouse appeal decision (APP/C1570/W/23/3321627), which found the sites to be in accessible locations. Whilst these sites are a similar distance to Elsenham as the appeal site, those conclusions reflected the Inspectors' planning judgements, based on the evidence presented in those cases, which is not before me. In addition, both decisions were

made under the old Local Plan, and the policy context has changed. Consequently, whilst they are material considerations, I attach only limited weight to these decisions.

18. The Newlands Cottage appeal decision (Appeal Ref: APP/C1570/W/21/3269005) was also determined under the old Local Plan. It is also closer to Elsenham than the appeal site. Given these differences in both policy context and location, this previous appeal decision is of limited weight. In another appeal, reference was made to Planning Policy Guidance 13: Transport (PPG13). However, it has since been revoked and replaced by the Framework. It does not form part of the current policy framework and is of limited relevance.
19. Similar to the other appeal decisions, the Land adjacent to Village Hall (S62A/2024/0058) application was determined under the old Local Plan. Whilst the Inspector concluded that the site represented a generally accessible and sustainable location for additional housing, that conclusion was reached having regard to a range of proposed infrastructure improvements. No comparable improvements form part of the proposal before me. Consequently, the circumstances differ from those of the appeal, and I attach only limited weight to that decision.
20. For these reasons, I therefore conclude that the appeal site would not be a suitable location for housing having regard to access to services and facilities and the spatial strategy. The proposal would harm the integrity of the Local Plan and would undermine the Council's spatial strategy and ability to deliver a genuinely plan-led approach to development.
21. Accordingly, the proposal would conflict with Development Policy 1 and Core Policy 3 of the Local Plan, the purposes of which are set out above. It would conflict with Core Policies 26, 27 and 28 of the Local Plan. These policies, amongst other things, require development proposals to be located close to key services and facilities, to limit motor vehicle trips and to make walking and cycling the preferred choice for day-to-day trips. It would also be contrary to Policy S5 of the Framework which states that only certain forms of development should be approved outside settlements.
22. The reason for refusal refers to conflict with code M1.2C and guidance M1.14G of the Uttlesford District-Wide Design Code 2024 (the Design Code). However, it appears that these relate to design matters which are not determinative in the context of this main issue.

### *Character and appearance*

23. The appeal site is adjacent to a cluster of housing that is generally sat within spacious plots and arranged in a loose and sporadic pattern. This form of development is characteristic of the area. Throughout the area, housing groups of various sizes are separated by areas of open countryside, which help maintain the dispersed pattern and contribute to the area's rural character. Whilst the appeal site forms part of this pattern and its openness makes a contribution to the character and appearance of the area, that contribution is limited. This is because the site is enclosed by hedgerows and trees. It therefore appears as a contained parcel of land rather than part of the wider countryside.

24. Although scale, layout and appearance remain to be determined, the indicative proposed site plan suggests that the housing could be laid out around a shared drive, forming a small group of housing which would be consistent with the dispersed pattern of development. Whilst the proposal would be located near the existing group of housing along the lane, it would remain visually and physically distinct due to the distance between the groups and the vegetation around the appeal site. The retention and reinforcement of this vegetation could be secured through landscaping details at the reserved matters stage.
25. The proposal would therefore be perceived as a distinct group of housing, rather than as an enlargement of the existing group, meaning the fundamental characteristic of a dispersed pattern of development arranged in separate groups would remain evident. Whilst the proposal would increase the amount of housing in this location and therefore result in a degree of intensification, a development of up to five dwellings would not be such an extent that it would spatially compete with the village.
26. For these reasons, I therefore conclude that the proposal would not cause harm to the character and appearance of the area. Accordingly, the proposal would comply with parts i. ii. and iii of Core Policy 52 of the Local Plan, which require proposals to understand and enhance the surroundings, be locally informed and demonstrate a coherent pattern of development has been achieved.
27. The reason for refusal also cites conflicts with codes C1.1C, ID1.1C of the Design Code. As the design of the development is not under consideration at this stage, these are not relevant considerations.

## **Other Matters**

### *Heritage assets*

28. Section 66(1) of the Town and Country Planning (Listed Buildings and Conservation Areas) Act 1990 requires that special regard is had to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses.
29. To the east of the appeal site are Grade II listed buildings, Harewood Cottage<sup>3</sup> and The Hermitage<sup>4</sup>. From the Historic England List Entries and my observations during the site visit, the setting of these listed buildings is derived in part, from their historic form and appearance, and the rural character of the area.
30. The appeal site has no apparent historic or functional association with the listed buildings in such a way that contributes to how these buildings are experienced or understood. It therefore makes a neutral contribution to their setting. Given the intervening distance, the proposal would preserve the setting of these listed buildings. The Council also raised no concerns in respect of these matters.

### *Other Council decisions*

31. The Council has approved housing development on several sites with similar locational characteristics and access to public transport comparable to those of the appeal site. However, each application must be determined on its own merits. The

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<sup>3</sup> Historic England List Entry Number: 1238083

<sup>4</sup> Historic England List Entry Number: 1221675

Inspector is not bound by previous decisions of the Council, particularly where those decisions pre-date the adoption of the current Local Plan and were made under a different policy context. Whilst these decisions have been considered, only limited weight is afforded to them.

32. Any dissatisfaction with the manner in which the Council has handled the application is a separate matter and is not relevant to the planning merits of the appeal.

### *Interested parties*

33. Whilst this section of Snakes Lane is a single-track road with limited opportunities for vehicles to pass, the Transport Technical Note submitted with the application concludes that the development would not have a perceptible adverse effect on the safe and efficient operation of the local highway network. I have seen no compelling evidence to suggest otherwise, and neither the Council nor the Highway Authority has raised an objection on highway safety grounds.
34. The appeal site is also located within Flood Zone 1, where the probability of flooding is low. In addition, the Council has confirmed that, given the scale and location of the proposal, sustainable drainage systems and other flood risk mitigation measures are not required.

### *Fallback*

35. I have no reason to believe that if this appeal fails, there is no real prospect that the extant permission would not be implemented. Therefore, there is a greater than theoretical possibility that this permission will take place and subsequently, the extant permission represents a 'fallback position'. The degree of weight to be given to the fallback position depends on whether or not it would be equally or more harmful than the proposal.
36. The appeal site would not be a suitable location for housing because opportunities for future occupiers to access services and facilities by sustainable modes of transport are constrained, resulting in a reliance on the car. This conflicts with the Council's spatial strategy. Whilst the adoption of the current Local Plan represents a material change in circumstances, these concerns would apply equally to the three dwellings that could be delivered under the extant planning permission.
37. It is acknowledged that scale is reserved for future consideration and the size of the proposed dwellings and likely number of future occupiers are not set. However, the extant permission includes a five-bedroom dwelling for up to eight occupants, a four-bedroom dwelling for up to eight occupants and a three-bedroom dwelling for up to six occupants, representing a large number of residents. The appeal proposal would increase the number of dwellings by no more than two compared with the extant permission and would not alter the site's location or its accessibility to services, facilities and sustainable transport options. Consequently, I find that the appeal proposal would give rise to a similar level of harm to that associated with the extant permission and attach significant weight to the extant permission as a fallback scheme.

### **Planning Balance**

38. Whilst I have found that the proposal would not cause harm to the character and appearance of the area, the appeal site would not be a suitable location for housing



having regard to access to services and facilities and the spatial strategy. The proposal therefore conflicts with the development plan as a whole.

39. Nevertheless, there is an extant planning permission for the erection of three dwellings at the appeal site. As set out above, the proposal would be no more harmful than the fallback position. This weighs heavily in favour of the appeal proposal.
40. Additionally, the Council cannot currently demonstrate a five-year housing land supply. The proposal would provide up to two more dwellings than the fallback scheme. Although this would make a small contribution to the housing land supply, it is a benefit. The proposal would also deliver both short-term and long-term economic benefits. These include job creation and increased spending during the construction phase, as well as ongoing expenditure and support for local services from future occupiers. Although the extent of the benefits would be limited because of the quantum of development, this nevertheless weighs in favour of the development.
41. Overall, whilst there is some conflict with the development plan, there are material considerations that indicate that a decision should be taken other than in accordance with it. Therefore, the appeal should be allowed.

### **Conditions**

42. I have attached conditions relating to the submission of reserved matters [1] and the time limits associated with this [2] and [3], along with a condition listing the approved plans to provide certainty [4].
43. As the Essex Historic Environment Record identifies the appeal site as being located within an area of archaeological potential, it is necessary to require an archaeological evaluation to be carried out [5] and for a final report to be submitted [6]. To ensure risks from land contamination are remediated, a contamination condition is imposed [7]. It is necessary to require a Construction Management and Environmental Plan to be secured in the interests of protecting the living conditions of neighbouring occupants [8].
44. To safeguard the character of the area and protect existing trees, it is necessary to require an Arboricultural Report to be carried out [9]. To conserve and enhance protected and priority species and habitats, it is necessary for a Biodiversity Enhancement Strategy to be implemented [10], for details of the external lights to be agreed [11] and for the mitigation and enhancement measures contained within the Preliminary Ecological Appraisal to be implemented [12].
45. Conditions relating to the laying out of the access [13], visibility splays [14], restrictions on gates [15] and cycle parking [16] are necessary to protect highway safety. In the interests of flight safety, there is clear justification for permitted development rights to be removed to restrict the design of external lighting [17]. Restrictions are also necessary during the construction period to prevent airborne debris due to flight safety [18]. To provide accessible and adaptable homes, it is necessary to require the dwellings to be built in accordance with relevant standards [19].
46. Conditions relating to an energy assessment, climate change and sustainability statement, lighting and bin details, water efficiency, collection and recycling

measures have not been imposed as they would pertain to the layout and scale of the development, and their necessity would be considered at the reserved matters stage. It is also not necessary to require electric vehicle charging as this is covered by building regulations.

47. Where biodiversity net gain (BNG) is applicable, the general biodiversity gain condition is deemed to apply to every planning permission granted. The condition is that the development may not be begun unless a biodiversity gain plan (BGP) has been submitted to the planning authority and they have approved the plan. BNG applies to the proposal and there are separate provisions governing the BGP, which can require the provision of a Habitat Management and Monitoring Plan where significant on-site enhancements are to be provided, which should not be duplicated by planning conditions. As such, I have not attached these suggested conditions.

### **Conclusion**

48. For the reasons given above, the appeal should be allowed.

*L Reid*

INSPECTOR



## **SCHEDULE OF CONDITIONS**

- 1) Details of the appearance, landscaping, layout, and scale ("the reserved matters") shall be submitted to and approved in writing by the Local Planning Authority before any development takes place and the development shall be carried out as approved.
- 2) Application for approval of the reserved matters shall be made to the Local Planning Authority not later than three years from the date of this permission.
- 3) The development hereby permitted shall take place not later than two years from the date of approval of the last of the reserved matters to be approved.
- 4) The development hereby permitted shall be carried out in accordance with drawing nos:

SK10 Rev M – Location Plan, F23043/02.

- 5) Prior to commencement of the development hereby approved, a Written Scheme of Investigation (WSI) to secure a programme of archaeological investigation, shall be submitted to and approved in writing by the Local Planning Authority.

The programme of archaeological investigation identified in the approved WSI shall be completed prior to commencement of the development hereby approved.

- 6) Following completion of the archaeological investigation and within six months from that completion, a final archaeological report or (if appropriate) a Post Excavation Assessment report and/or an Updated Project Design shall be submitted to and approved in writing by the Local Planning Authority.
- 7) Prior to commencement of the development hereby approved, a Phase 1 Desk Study report documenting the ground conditions of the site with regard to potential contamination shall be submitted to and approved in writing by the Local Planning Authority. This report shall adhere to British Standard 10175:2011.

If shown to be necessary by the Phase 1 Desk Study and prior to occupation of the development hereby approved, a Phase 2 Site Investigation adhering to British Standard 10175:2011 shall be submitted to and approved in writing by the Local Planning Authority.

If shown to be necessary by the Phase 2 Site Investigation and prior to occupation of the development hereby approved, a detailed Phase 3 remediation scheme shall be submitted for approval in writing by the Local Planning Authority. This scheme shall detail measures to mitigate any risks to human health, groundwater, and the wider environment. Thereafter, the detailed measures/works approved as part of the Phase 3 remediation scheme shall be completed in full before any permitted building is occupied.

Prior to occupation of the development hereby approved, a validation report shall be submitted to and approved in writing by the Local Planning Authority to show the effectiveness of any remediation scheme. The validation report shall include photographs, material transport tickets and validation sampling. Any such validation should include effective responses to any unexpected contamination discovered during works.

- 8) Prior to commencement of the development hereby approved, a Construction and Environmental Management Plan (CEMP) shall be submitted to and approved in writing by the Local Planning Authority.

The CEMP shall specify the provisions to be made for the control of noise and dust emanating from the site in accordance with the best practicable means, as well as confirm the contact information of the person responsible to deal with complaints from the public.

The approved CEMP shall be adhered to throughout the construction period.

- 9) Prior to commencement of the development hereby approved, an Arboricultural Report in accordance with British Standard 5837:2012 shall be submitted to and approved in writing by the Local Planning Authority.

The Arboricultural Report shall include protective measures for existing trees, which shall be implemented on the site before any equipment, machinery or materials are brought onto the site for the purposes of the development, and shall be maintained until all equipment, machinery and surplus materials have been removed from the site or until the substantial completion of the development (whichever is later). Nothing shall be stored or placed in any area fenced and the ground levels within those areas shall not be altered nor shall any excavation be made.

- 10) Prior to any works above slab level, a Biodiversity Enhancement Strategy for protected, priority and threatened species shall be submitted to and approved in writing by the Local Planning Authority.

The Biodiversity Enhancement Strategy shall include:

- a) purpose and conservation objectives for the proposed enhancement measures;
- b) detailed designs or product descriptions to achieve stated objectives;
- c) locations of the enhancement measures by appropriate drawings;
- d) persons responsible for implementing the enhancement measures;
- e) details of initial aftercare and long-term maintenance (where relevant).

Thereafter, the ecological works shall be implemented in accordance with the approved details prior to first occupation of the development hereby approved.

- 11) Prior to occupation of the development hereby approved, a lighting design scheme for biodiversity in accordance with General Note: 08/23 (Institute of Lighting Professionals) shall be submitted to and approved in writing by the Local Planning Authority.

The scheme shall:

- a) identify those areas/features on site that are particularly sensitive for bats and that are likely to cause disturbance in or around their breeding sites and resting places or along important routes used to access key areas of their territory, for example, for foraging; and,
- b) show how and where external lighting will be installed (through provision of appropriate lighting contour plans and technical specifications) so that it can be clearly demonstrated that areas to be lit will not disturb or prevent the above species using their territory or having access to their breeding sites and resting places.

All external lighting shall be installed in accordance with the specifications and locations set out in the approved scheme and shall be maintained in accordance with the scheme at all times.

Under no circumstances should any other external lighting be installed without prior consent in writing from the Local Planning Authority.

- 12) All ecological mitigation and enhancement measures and/or works shall be carried out in accordance with the details contained in the Preliminary Ecological Appraisal (Arbtech, March 2025).

The enhancement measures and works shall be carried out in full accordance with the approved details and shall be maintained as such at all times.

- 13) Prior to occupation of the development hereby approved, the private drive shown on Drawing Number F23043/02 shall be constructed at right angles to the highway boundary and to the existing carriageway. The width of the private drive shall be 5.5 metres for at least the first 6 metres from the back of existing carriageway and provided with an appropriate dropped kerb crossing of the highway verge.

The private drive shall remain as such at all times.

- 14) Prior to occupation of the development hereby approved, the private drive access at its centre line shall be provided with a clear to ground visibility splay with dimensions of 2.4 metres by 31 metres to the north-east and 2.4 metres by 32 metres to the south, as measured from and along the nearside edge of the carriageway. Such vehicular visibility splays shall be provided before the private drive access is first used by vehicular traffic and retained free of any obstruction at all times.
- 15) Any gates provided at the vehicular access shall be inward opening only and shall be set back a minimum of 6 metres from the back edge of the footway/highway.

The gates shall be retained as such at all times.

- 16) Prior to occupation of the development hereby approved, cycle parking shall be provided in accordance with parking standards. The cycle parking facilities shall be secure, convenient, covered and shall be retained as such at all times.

- 17) Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) (England) Order 2015 (or any Order revoking or re-enacting that Order), all exterior lighting shall be capped at the horizontal with no upward light spill.
- 18) Before, during and after the construction period (including excavation), no dust/smoke clouds nor pools/ponds of water shall occur or be created on, near or above the site and no airborne debris shall be created on or blown from the site from waste materials during or after the construction period, in accordance with the advice of Stansted Airport and the Civil Aviation Authority.
- 19) The development hereby permitted shall be provided in accordance with the guidance in Approved Document S 2021 and shall be built in accordance with Optional Requirement M4(2) (Accessible and adaptable dwellings) of the Building Regulations 2010 Approved Document M, Volume 1 2015 edition.